MASHUMBA KAPONYA
versus
MAKE MAHWIRIDI
and
THE MINISTER OF AGRICULTURE, FISHERIES, WATER AND RURAL DEVELOPMENT

HIGH COURT OF ZIMBABBWE
MANYANGADZE J
HARARE, 10 September 2025 & 23 March 2026

Opposed application

B Taruvinga, for the applicant
A Magunde, for the 2nd respondent

MANYANGADZE J:

INTRODUCTION

This is an application for review in which the applicant seeks the setting aside of the second respondent's decision to issue an offer letter to the first respondent for Plot 69 Hariana Farm, Mvurwi, Mazowe District, measuring 6 hectares ("the plot"). The relief sought is in the following terms:

> "1. The Application for Review be and is hereby granted.
> 2. The decision of the 2nd Respondent to issue the 1st Respondent with a certificate of occupation/ offer letter in respect of Plot 69 Hariana, Mvurwi, Mazowe District be and is hereby set aside and the said offer letter be and is hereby declared to be null and void.
> 3. The 2nd Respondent be and is hereby directed to hear and determine the appeal that was filed with the Applicant within 14 days of this order.
> 4. Each party to bear its own costs."

BACKGROUND

The applicant was issued with a Certificate of Occupation/Offer Letter for the plot in 2006. He has been resident there since then.

A dispute arose with the first respondent, who claimed ownership of the same plot. The basis of the first respondent's claim is that he inherited the plot from his late father.

The dispute was taken to the Zimbabwe Land Commission, which ruled in favour of the first respondent.

The applicant appealed to the second respondent, who withdrew applicant's offer letter and instead issued an offer letter to the first respondent.

The applicant alleges that the purported withdrawal of his offer letter and issuing of an offer letter to the first respondent was done before the determination of his appeal by the second respondent. This irregularity prompted the instant application.

The applicant's grounds for review are stated as follows:

> "a. The Minister unprocedurally erred by issuing an offer letter to the 1st Respondent where the Applicant's offer letter had not been withdrawn and is still valid.
>
> b. The Minister unprocedurally erred by proceeding to issue an offer letter to the 1st Respondent where the Applicant's appeal is still pending before him and where the effect of the appeal was to suspend the decision of the Zimbabwe Land Commission."

APPLICANT'S ARGUMENT

In the main, the applicant avers that it was unprocedural for the second respondent to issue an offer letter to the first respondent while his appeal was pending before the second respondent.

The applicant further avers that when the decision to issue an offer letter to the first respondent was made, his offer letter had not yet been withdrawn.

The applicant contends that his appeal to the second respondent has the effect of automatically suspending execution of the decision appealed against. The second respondent did not follow the procedures outlined in ss 18 of the Land Commission Act [Chapter xxx] ("the Act") on the withdrawal/ cancellation of offer letters.

SECOND RESPONDENT'S ARGUMENT

It is noted that the first respondent did not file any opposing papers. It is taken he will simply abide by the decision of the court, as the application is impugning the decision of the second respondent as an administrative authority.

The second respondent avers there was nothing unprocedural in what he did. He withdrew the applicant's offer letter and reissued an offer letter to the first respondent after realising that the offer letter to the applicant was erroneously issued. He avers that the plot belongs to the first respondent as a beneficiary of late father's estate.

The second respondent further avers that he had "already dealt with the dispute" when he issued the offer letter to the second respondent. A new offer letter was issued to the applicant, offering him alternative land, a plot at Brotherton Farm.

The second respondent contends that in any case, the applicant's appeal was filed out of time. Because of this irregularity, there is no appeal pending before it.

THE LAW

The withdrawal/ cancellation of offer letters issued by the second respondent is governed by ss 18 and 19 of the Act. They read as follows:

> "18. (1) Subject to subsection (2), the Minister reserves the right to cancel a permit and repossess the allocated land, in the event of-
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> (α) any material breach of the terms and conditions of the permit; or
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> (b) the permit holder allowing his or her agricultural or pastoral operations to decline to such an extent that the allocated land is not being properly managed; or
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> (c) the permit-holder purporting to cede, assign, hypothecate or otherwise alienate or sublet in whole or in part, or donate or dispose of his or her allocated land or any of his or her rights, interests or obligations under his or her permit, or place any other person in possession of the allocated land, or to enter into a partnership for the working of the allocated land, without obtaining the consent of the Minister in writing in accordance with section 7; or
>
> (d) the permit holder finally and absolutely abandoning the allocated land:
>
> Provided that the permit holder shall be deemed to have finally and absolutely abandoned the allocated land if he or she absents himself or herself from the allocated land without appointing a responsible person for more than ninety (98) consecutive days in any calendar year, without the prior written consent of the Minister,
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> (2) The Minister shall, before giving notice to the permit holder of the cancellation of the permit on a ground specified in subsection (1), give to the permit holder at least thirty (30) days' notice of his or her intention to terminate the permit, together with his or her reasons for wishing to do so, and afford the permit holder an opportunity to make representations to him or her on the matter.
>
> Termination of permit by Minister
>
> 19.(1) The Minister may, by giving not less than ninety (90) days written notice to the permit holder setting forth the reasons for the termination, terminate a permit on any ground on which he or she would be permitted to acquire land compulsorily under the Constitution and any Act made pursuant to the compulsory acquisition provisions of the Constitution.
>
> (2) Upon termination of a permit under subsection (1), the Minister reserves the right to resume possession of the allocated land without prejudice to his or her rights to claim any charges, damages or other moneys due from the permit holder."

On the effect of an appeal, s 61(1)(b) provides:

> "Subject to this section, any person who is aggrieved by- (a) the decision of, or action or lack of action on the part of, the Commission upon any dispute or complaint; or (b) such decision or action of the Commission as may be prescribed; may, within twenty-eight days after being notified of the decision or action of the Commission concerned, appeal in writing to the Minister, submitting with his or her appeal such fee as may be prescribed, and such appeal shall suspend the operation of any decision issued by the Commission."
>
> (underlining added for emphasis)

Regarding due process, the fundamental tenets of administrative justice are clearly set out in s 3 (1)(2) of the Administrative Justice Act [*Chapter 10:28*]. These provisions read as follows:

> "(1) An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests or legitimate expectations of any person shall-
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> (a) act lawfully, reasonably and in a fair manner; and
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> (b) act within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to take the action by the person concerned; and
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> (c) where it has taken the action, supply written reasons therefor within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to supply reasons by the person concerned.
>
> (2) In order for an administrative action to be taken in a fair manner as required by paragraph (a) of subsection (1), an administrative authority shall give a person referred to in subsection (1)-
>
> (a) adequate notice of the nature and purpose of the proposed action; and
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> (b) a reasonable opportunity to make adequate representations; and
>
> (c) adequate notice of any right of review or appeal where applicable."

APPLICATION OF THE LAW

The gravamen of this application is that the second respondent decided applicant's fate when his appeal against the decision of the Zimbabwe Land Commission was pending. This means the second respondent effectively dismissed the appeal without hearing the applicant.

The Zimbabwe Land Commission determination was handed down on 24 January 2024. The date of hearing was 14 December 2023. The determination is couched in the following terms:

> "1. The Complainant, Meki Mahwiridi, is the rightful owner of subdivision 69 Hariana farm, Mazowe District, Mashonaland Central Province.
> 2. The Ministry of Lands, Agriculture, Fisheries, Water and Rural Development to offer the Respondent, Mashumba Kaponya alternative land within six months from the date of receipt of this order."

The appeal to the second respondent was filed on 9 April 2024.

The first follow up letter from the applicant's legal practitioners was written on 17 September 2025.

The second follow up letter was on 21 October 2025.

The record shows that the offer letter to first respondent, captioned "AI MODEL TEMPORARY SETTLEMENT PERMIT", was issued on 2 February 2025.

There is a letter from the second respondent to the Provincial Land Officer dated 4 August 2025, advising the latter that the plot was erroneously allocated to the applicant. The rightful owner is the first respondent as the beneficiary of the estate late Mahwiridi. The letter also advises that the applicant has been reallocated an alternative plot and a withdrawal and new offer letter will be issued soon.

Their record contains no determination of the appeal filled by the applicant against the decision of the Zimbabwe Land Commission. What has been filed by the respondent are its internal documents indicating that applicant's plot has been listed for withdrawal of the offer letter and that applicant needs to be relocated. Such documents do not amount to a determination of the appeal pending before the second respondent. They are internal documents on administrative decisions that were being considered.

There is no outcome of the appeal that was formally communicated to the applicant. There is also no withdrawal letter that was issued to the applicant. The clear self-explanatory procedures outlined in the provisions of the Act cited above were not followed.

It is therefore the court's considered view that due process was not followed by the second respondent in its handling of the dispute between the applicant and the first respondent. The issue is not whether the second respondent feels that it was justified in reallocating the plot to the first respondent. It is about following due process as laid down by the law. The dispute involves removal of a person from land he had occupied for years and had built his life around on it. The appeal ought to have been properly argued and determined.

The issue of the applicant's alleged breach of the dies induciae for filing the appeal is being disingenuously raised by the second respondent. It is part in my view among the issues the second respondent ought to have dealt with in the appeal before it. Tere should be an order striking off the appeal or dismissing it for want of compliance with the rules. Such an order would be made after hearing argument from both parties on the issue. The second respondent cannot raise the issue in this court as a defence to the application for review.

DISPOSITION

In the circumstances, it is the court's considered view that the applicant has established sufficient grounds for the relief sought. The application succeeds.

In the result, it is ordered that:

1. The application for review be and is hereby granted.

2. The decision of the 2nd Respondent to issue the 1st Respondent with a certificate of occupation/ offer letter in respect of Plot 69 Hariana, Mvurwi, Mazowe District be and is hereby set aside and the said offer letter be and is hereby declared to be null and void.

3. The 2nd Respondent be and is hereby directed to hear and determine the appeal that was filed with the Applicant within 14 days of this order.

4. Each party to bear its own costs.

MANYANGADZE J…….

Tafirei and Company, applicant's legal practitioners
Civil Division, Attorney General's Office, 2nd respondent's legal practitioners